

\$2,500 for Plaintiff's personal efforts appears appropriate on the evidence before the court.

Escalator Clause. The settlement agreement states that aggrieved employees worked an estimated 8,300 compensable workweeks among them from April 4, 2021 to November 20, 2025. (Ryu Dec. at ¶ 10, Exhibit 1 [settlement agreement section 4.1].) The agreement contains an escalator clause stating that if it turned out that there were more than 10% more compensable workweeks in that time frame than estimated Defendants could elect to either increase the total settlement amount (by one percentage point for every percentage point past ten of increased pay periods; for example, if the total number of compensable periods turned out to be 13% higher than the estimate, Defendants would increase the total settlement amount by 3%) or elect to cut off the class claims period at the last point that the compensable period total did not exceed 110% of the estimate.

The escalator clause's provision permitting Defendants to elect to cut the class period short is not fair or reasonable. The election provision gives Defendants control over the definition and size of the class Plaintiff purports to represent. It is not fair or reasonable to permit Defendants to choose to curtail the class if it does not align with the original estimate. Further, the escalator clause provision permitting an increase of up to 10% in identified compensable workweeks with no matching increase in compensation to the class is not fair or reasonable. There is no stated basis for permitting Defendants to ignore a certain number of labor law violations or to effectively diminish compensation to the entire class via the escalator clause as written. Relatedly, the escalator clause does not account for increases over the estimated number of PAGA compensable pay periods, meaning it does not conform with the PAGA's goal of thorough and accurate enforcement of state labor laws.

Conclusion. Plaintiff's motion is denied.

9:30 a.m. CALENDAR

LINE

6

**IN THE MATTER OF THE ZACHARY WOOD SPECIAL NEEDS TRUST
FPR045592**

Sixth Account Current and Report of Trustee; for Authorization to Pay Trustee's Attorneys' Fees; Approval; of Fees Paid to Trust Advisory Committee; Removal of Florentina Valdez from the Trust Advisory Committee

PREGRANT ORDER

The court on its own motion continues this hearing to July 15, 2026, at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issue:

The petitioner obtained a surcharge order against the beneficiary's mother, Carla Wood, but it does not appear from the accounting that she has made any payments

on that surcharge. The petitioner shall explain whether they are enforcing the surcharge order.

LINE

7

**IN THE MATTER OF THE CRYSTAL VALDEZ SPECIAL NEEDS TRUST
FPR046094**

Sixth Account Current and Report of Trustee; for Authorization to Pay Trustee's Attorneys' Fees; Approval; of Fees Paid to Trust Advisory Committee; Removal of Florentina Valdez from the Trust Advisory Committee

PREGRANT ORDER

This matter was continued from March 19, 2026 to allow the petitioner to address issues with the petition. The court has reviewed the First Supplement filed May 6, 2026 which did not resolve all of the issues.

The court on its own motion continues this hearing to July 16, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issues:

1. The petitioner is requesting payment for trust advisory fees to IBAR. However, there is no declaration on file by IBAR Settlement Co. concerning their fees. (Solano Local Rule 7.104b.)
2. The Supplement was verified by the attorney, not the trust officer. Probate Code section 1021(b) requires the petitioner as the fiduciary to verify the documents.

LINE

8

**IN RE THE ESTATE OF SAMUEL MICHAEL KLEIMAN, DECEASED
FPR048079**

Amended Report of Sale and Petition for Order Confirming Sale of Real Property

PREGRANT ORDER

This matter was continued from October 16, 2025, December 4, 2025, January 28, 2026, and March 25, 2026 to allow the petitioner to address issues with the petition for order. The court has reviewed the amended Report of Sale and the Supplement which did not resolve all of the outstanding issues.

The court on its own motion continues this hearing to July 22, 2026, at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues: